

Israr Ahmad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 January 2012 · WRIT - C No. 76306 of 2011 · **Writ dismissed; relegated to Supply Code for bill-correctness**

HEADNOTE

Mandamus to issue a correct electricity bill matching an on-spot checking report refused. Correctness of the bill is to be raised under the U.P. Electricity Supply Code, 2005; the writ is dismissed with liberty to pursue that remedy.

FACTUAL SUMMARY

Israr Ahmad filed a writ in the Allahabad High Court seeking a mandamus to the State and electricity authorities to issue a correct electricity bill as recorded in an on-spot checking report. He alleged the billed amount did not accord with that report. The Division Bench of Ashok Bhushan and Sunita Agarwal, JJ. disposed of the petition on 2 January 2012. The order does not set out the connection particulars, meter history, or the amount in dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

billing-dispute-forum

HOLDING

A consumer seeking a mandamus to issue a correct electricity bill matching an on-spot checking report must raise the correctness of the bill under the U.P. Electricity Supply Code, 2005; the writ is dismissed with liberty to pursue that statutory remedy. ¶ 1

FLAG order cites U.P. Electricity Supply Code, 2005 generally; no clause numbered

PRINCIPLE TAGS

relegate-to-statutory-remedy Mandamus to issue a correct electricity bill matching an on-spot checking report refused. Correctness of the bill is to be raised under the U.P. Electricity Supply Code, 2005; the writ is dismissed with liberty to pursue that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL MATCHED THE ON-SPOT CHECKING REPORT OR REQUIRED CORRECTION

Left to the Supply Code remedy ¶ 1